

HOUSE BILL 1323

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 5 and Title 49, Chapter 6, relative to
teacher licensure.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-5-106, is amended by deleting the section and substituting instead the following:

(a) It is the intent of the general assembly to urge LEAs and public charter schools to make every effort to staff kindergarten through grade twelve (K-12) teaching positions with personnel fully licensed and endorsed for such grades.

(b) After a director of schools or a director of a public charter school notifies the local board of education or the governing body of the public charter school, as applicable, that the LEA or public charter school is unable to secure a qualified teacher with a valid license for the type and kind of school in which a vacancy exists, the director of schools or the director of the public charter school may certify the same to the commissioner of education. Upon the commissioner's receipt of the certification, the commissioner may grant to an individual recommended by the director of schools or the director of the public charter school, as applicable, on behalf of the state board of education, under conditions prescribed in the state board's rules, one (1) of the following emergency teaching credentials to teach in the unfilled position:

(1) A temporary academic permit to an individual who does not hold an active Tennessee educator license but who has earned, at a minimum, a bachelor's degree from a regionally or nationally accredited college or university

recognized by the Council for Higher Education Accreditation or the United States department of education;

(2) A temporary clinical permit to an individual who does not hold an active Tennessee educator license but who:

(A) Is enrolled in a state-board-approved educator preparation program (EPP);

(B) Has completed all EPP coursework, except for the clinical practice required pursuant to § 49-5-5604 and the rules of the state board of education;

(C) Has a letter of recommendation from the EPP in which the individual is enrolled; and

(D) Has a conditional offer of employment, made by the director of schools or the director of the public charter school, as applicable, for the individual to fill a position for which the LEA or public charter school is unable to secure a qualified teacher with a valid license for the type and kind of school in which a vacancy exists; or

(3) A license endorsement exemption to an educator who holds a full, valid, and active Tennessee educator license.

(c) Emergency credentials granted pursuant to subsection (b) are valid only until June 30 following the date on which the credential was issued.

(d) A temporary clinical permit granted pursuant to subdivision (b)(2) is not renewable.

(e)

(1) When determining whether to grant a temporary academic permit pursuant to subdivision (b)(1) to allow an individual to teach a course for which an end-of-course examination is required, the commissioner shall consider:

(A) The availability of other faculty or staff who are qualified to teach the course for which an end-of-course examination is required;

(B) The timing of the vacancy in relation to the school calendar of the LEA or public charter school, such as whether the vacancy occurs during the school year or between school years; and

(C) In cases where a vacancy for a course requiring an end-of-course examination occurs outside the school calendar of the LEA or public charter school, the LEA's or public charter school's efforts to advertise the vacancy.

(2) An individual who receives a temporary academic permit to teach a course for which an end-of-course examination is required must be assigned a mentor teacher by the director of schools or the director of the public charter school, as applicable.

(f) Notwithstanding subsection (b), the commissioner shall not grant a person, on behalf of the state board, an emergency teaching credential to teach a special education course.

(g) An individual who teaches under a temporary clinical permit issued pursuant to this section satisfies the clinical experience required pursuant to § 49-5-5604 if:

(1) The individual is assigned to, and receives guidance, evaluations, and instructions from, an educator for an amount of time that is at least equal to the amount of time required for candidates of the EPP in which the individual is enrolled to meet the EPP's clinical experience requirements;

(2) The educator assigned to the individual evaluates the individual as having adequately met the same requirements that candidates of the EPP in which the individual is enrolled must meet to satisfy the clinical experience requirements of § 49-5-5604; and

(3) The individual teaches under a temporary clinical permit for an amount of time that is at least equal to the amount of time required for candidates of the EPP in which the individual is enrolled to complete the clinical experience requirements of § 49-5-5604.

(h) A local board of education or the governing body of a public charter school may enter into a one-year contract with a teacher who holds a temporary academic permit granted pursuant to subdivision (b)(1), but who does not hold a valid Tennessee educator license. The local board of education or the governing body of the public charter school may only renew such a contract if the local board of education or the governing body of the public charter school is unable to secure a qualified teacher with a valid license for the type and kind of school in which the vacancy exists.

(i)

(1) A director of schools or a director of a public charter school who learns of the conviction of a teacher who holds a temporary academic permit or a temporary clinical permit, and who is employed by the director's LEA or public charter school, for any offense listed in § 49-5-417(a) shall report the conviction to the state board. The state board shall set the time frame within which a director of schools or a director of a public charter school must report the conviction of a teacher who holds a temporary academic permit or a temporary clinical permit. The state board may specify other offenses for which a director of schools or a director of a public charter school is required to report to the state

board upon learning of a conviction of a teacher who holds a temporary academic permit or a temporary clinical permit.

(2) A director of schools or a director of a public charter school shall report to the state board a teacher who holds a temporary academic permit or a temporary clinical permit, and who is employed by the director's LEA or public charter school, who has been suspended or dismissed, or who has resigned following allegations of misconduct, including sexual misconduct, which, if substantiated, would warrant consideration for disciplinary action under state board rules. As used in this subdivision (i)(2), "sexual misconduct" has the same meaning as defined in § 49-5-417(c)(5).

(j)

(1) Notwithstanding another law to the contrary, and except as provided in subdivision (j)(3), a teacher who holds the teacher's third temporary academic permit may apply to the department for a limited license to continue teaching the course or subject area taught pursuant to the teacher's temporary academic permit. The department shall approve a teacher's application for a limited license to continue teaching the course or subject area taught pursuant to the teacher's temporary academic permit if the teacher:

(A) Holds a valid temporary academic permit;

(B) Earned a level of overall effectiveness score of "above expectations" or "significantly above expectations" on the teacher's most recent evaluation pursuant to § 49-1-302;

(C) Provides a letter from the director of schools or the director of the public charter school for the LEA or school at which the teacher taught pursuant to the teacher's temporary permit recommending that the

teacher receive a limited license with the same endorsement granted to the teacher pursuant to the teacher's temporary academic permit; and

(D) Agrees, in writing, to begin a pathway approved by the state board for transitioning educators from a limited license to a practitioner license.

(2) Limited licenses are valid for two (2) school years and are not renewable.

(3) The department shall not issue a limited license to teach a special education course.

(4) The state board of education shall promulgate rules, in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to establish:

(A) Any requirements, in addition to the requirements established in this section, for the issuance of a limited license; and

(B) A pathway for a teacher who holds a limited license to obtain a practitioner license, including rules to establish:

(i) Minimum requirements for coursework provided by an EPP or a provider approved by the department of education and the state board of education that is focused on foundational pedagogical skills, including foundational literacy skills in accordance with the Tennessee Literacy Success Act, compiled in chapter 1, part 9 of this title;

(ii) Benchmarks for teachers who hold a limited license to show that the teacher has met the state board's expectations for

adequate content knowledge in the subject area taught by the teacher;

(iii) Requirements for teachers who hold a limited license to receive support from a highly-effective clinical mentor; and

(iv) Professional assessment requirements.

(k) The department of education shall report to the education committee of the senate and the committees of the house of representatives having jurisdiction over teacher licensure the number of temporary teaching permits requested and granted for individuals to teach courses for which an end-of-course examination is required for the 2024-2025 school year, the 2025-2026 school year, and the 2026-2027 school year, respectively, by July 1, 2027.

SECTION 2. Tennessee Code Annotated, Section 49-5-110, is amended by deleting the section and substituting instead the following:

(a)

(1) To be eligible to receive a limited occupational teaching license, an individual must:

(A) Have received a conditional offer of employment from the director of schools or director of the public charter school, as applicable;

(B)

(i) Have a minimum of five (5) years of relevant work experience, completed within the last ten (10) years, or a minimum of three (3) years of relevant work experience, completed within the last five (5) years, in the area of endorsement or equivalent educational attainment; or

(ii) Hold an active industry license or credential, including one issued by another state, for the area of endorsement, if an industry license or credential is available;

(C) Agree in writing to complete, during the period for which the initial limited occupational teaching license is issued, training conducted by the LEA or public charter school, in accordance with the state board of education's rules, in the subjects of classroom management, serving students with disabilities and English language learners, and the teacher code of ethics; and

(D) Be assigned, and work with, a mentor teacher in accordance with requirements established by the state board of education.

(2) To be eligible for a practitioner occupational teacher license, an individual must:

(A) Be enrolled in a state-board-approved educator preparation program with a job-embedded clinical practice; or

(B) Have completed a state-board-approved educator preparation program.

(b) A limited occupational teaching license issued pursuant to subdivision (a)(1):

(1) Is valid for three (3) years; and

(2) May only be renewed if the holder of the license:

(A) Earned a level of overall effectiveness score of "above expectations" or "significantly above expectations" according to the evaluation guidelines adopted by the state board of education pursuant to § 49-1-302 for each of the first two (2) school years immediately following issuance of the individual's license;

(B) Has completed the training described in subdivision (a)(1)(C);
and

(C) Meets the requirements for renewal established in the state
board of education's rules.

(c) Enrollment in, or completion of, a state-board-approved educator preparation program is not required for an individual to receive a limited occupational teaching license.

(d) An educator who holds a limited occupational teaching license or a practitioner occupational teaching license pursuant to this section must meet all requirements for license advancement and renewal established in this section and in the state board of education's rules in order to advance or renew the license.

(e) The state board of education shall promulgate rules, in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to establish any requirements in addition to those provided in this section for the issuance of a limited occupational teaching license or a practitioner occupational teaching license.

SECTION 3. Tennessee Code Annotated, Section 49-5-112(a), is amended by deleting the second sentence of the subsection and substituting:

An initial license issued pursuant to this section must bear an endorsement to teach only the subject area the person taught at the eligible postsecondary institution. After the initial license is issued, an additional endorsement may be added to the license pursuant to the state board of education's rules.

SECTION 4. Tennessee Code Annotated, Section 49-5-114, is amended by deleting the section.

SECTION 5. Tennessee Code Annotated, Section 49-5-115, is amended by deleting the section.

SECTION 6. Tennessee Code Annotated, Title 49, Chapter 5, Part 1, is amended by adding the following as a new section:

49-5-116. Teaching a course with an end-of-course examination.

A teacher with a valid license shall not teach a course for which an end-of-course examination is required for students to satisfy graduation requirements established by the state board of education pursuant to § 49-6-6001(a) if the teacher's license does not carry a subject specific endorsement for the subject area of the course unless the teacher:

(1) Demonstrates sufficient content knowledge in the course material by taking and passing, at the teacher's own expense, a standardized or criterion-referenced test for the content area; or

(2) Possesses a license endorsement exemption pursuant to § 49-5-106.

SECTION 7. Tennessee Code Annotated, Section 49-6-1021(e), is amended by deleting subdivision (3) and substituting:

(3) Physical education classes must be taught by an educator who holds a credential in accordance with chapter 5 of this title and the state board of education's rules.

SECTION 8. Tennessee Code Annotated, Section 49-6-6006, is amended by deleting the section.

SECTION 9. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 10. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.